

IN THE HIGH COURT OF TANZANIA

DODOMA SUB-REGISTRY

AT DODOMA

LAND REVISION NO. 31364 OF 2024

(Arising from Land Application No. 38 of 2020 in the District Land and Housing Tribunal for Iramba at Kiomboi)

NEEMA BENSON SHABAN @

NEEMA BENSON SHABANIAPPLICANT

VERSUS

RAMADHANI JUMA MPANDA 1ST RESPONDENT

NEEMA MDINKU.....2ND RESPONDENT

RULING

8th & 29th December 2025

MUSOKWA, J.

This application was brought under the provisions of section 41(1) of the Land Disputes Courts Act, Cap 216 R.E 2019, section 79 (1)(c), section 95 and Order XLIII Rule 2 of the Civil Procedure Code, Cap 33 R.E. 2019 (CPC). The applicant's chamber summons, prayed for this court to call for, inspect and examine the records of the District Land and Housing Tribunal for Iramba (DLHT) and its subsequent orders in respect of Land Application No. 38 of 2020 and also examine and revise the same.



In the counter-affidavit, the 1st respondent raised two preliminary objections, namely: first, that the application was incompetent for being time-barred; and secondly, that the application was bad in law for contravening section 41(1) and (2) of the Land Disputes Courts Act.

On 17th November 2025, the Court directed that the matter be disposed of by way of written submissions. The applicant had the services of David Rutayuga Deogratus, advocate, whereas the 1st respondent was unrepresented. Both parties filed their submissions for and against the filed application and for the raised preliminary objections.

At this juncture, before delving into the merits of the application, I shall first determine the preliminary objections raised by the 1st respondent, on which each party filed submissions in accordance with the schedule set by the Court.

The 1st respondent submitted that it is a settled principle that jurisdiction is a creature of statute, particularly where limitation periods are prescribed by law. Revisional proceedings in land disputes are among the proceedings subject to statutory limitation. He relied on section 44(1) and (2) of the Land Disputes Courts Act, Cap. 216, R.E. 2023 which vests this Court with jurisdiction to hear appeals and revisions from District Land and Housing Tribunals, subject to compliance with

the prescribed limitation period of forty-five (45) days, unless extension of time is granted.

It was submitted further that the applicant moved this Court through a chamber summons under section 41(1) of the Land Disputes Courts Act, R.E. 2019, seeking an order of revision against the decision in Land Case No. 38 of 2020. However, the cited provision provides for appeals arising from appellate or revisional decisions of the DLHT, whereas the impugned judgment dated 17/01/2023 emanated from the DLHT's original jurisdiction. Further, the applicant was not an original party to the said proceedings. Consequently, the application does not fall within the scope of section 41(1) and is therefore incompetent.

Contending further, the 1st respondent argued that the application was founded on a wrong provision of the law, which is a fundamental defect rendering it incompetent for having improperly moved the Court. Reliance was placed on **China Henan International Co-operation Group vs Salvand K.A. Rwegasira** [2006] TLR 220, which affirms that failure to cite the correct provision of the law is not a mere technicality but a jurisdictional defect.

On limitation of time, the 1st respondent submitted that the application was filed on 08/12/2024, seeking revision of a decision delivered on 17/01/2023, amounting



to a delay of 705 days, well beyond the statutory limit of 45 days. The applicant neither sought nor obtained leave to file the application out of time. Meanwhile, the 1st respondent had already filed an application for execution on 24/03/2024.

This position was reinforced by **Vumilia Mtaki Tilumwanya vs Rehema Haule**, Land Revision No. 16993 of 2025 [2025] TZHC Land D 923 (13 November 2025) where it was held that a revision filed outside the prescribed period without extension of time is illegally before the Court and ought to be dismissed under section 3(1) of the Law of Limitation Act, Cap. 89, R.E. 2019.

In the premises, the 1st respondent submitted that the instant application was time-barred and therefore incompetent. In the absence of an extension of time, it was contended that this Court lacks jurisdiction to entertain the application and that, consequently, the application ought to be dismissed.

In reply to the preliminary objections raised, learned counsel for the applicant submitted that the first preliminary objection, alleging that the application is incompetent for being time-barred in respect of Land Case No. 38 of 2020, is misconceived and devoid of merit.

Counsel submitted that the applicant clearly stated at paragraph 13 of her affidavit that she was not a party to Land Case No. 38 of 2020. There is no dispute that

she was a complete stranger to those proceedings and could not have been aware of what transpired between the 1st and 2nd respondents. Consequently, the statutory limitation period cannot apply to her as alleged by the 1st respondent.

This legal position was affirmed in **Jacqueline Ntuyabaliwe Mengi & Others vs Abdiel Reginald Mengi & Others**, Civil Revision No. 1 of 2022 [2022] TZHC 11694 (11 August 2022).

Consistent with this authority, the applicant explained at pages 9–10 of her affidavit how she became aware of the impugned decision, and that time began to run on 15th October 2024, not from the date of the judgment as alleged by the 1st Respondent. On that basis the present application was filed within time.

Learned counsel further submitted that the 1st respondent's reliance on the case of **Vumilia Mtaki Tilumanywa** (supra) was misplaced and that the said authority is distinguishable from the circumstances of the present case.

On the second preliminary objection, counsel submitted that the applicant properly moved this Court under the correct provisions, namely section 41(1) of the Land Disputes Courts Act, Cap. 216 R.E. 2019, sections 79 (1)(c), 95, and Order XLII Rule 2 of the Civil Procedure Code, Cap. 33 R.E. 2019. Counsel further submitted



that the relevant provisions of the Land Disputes Courts Act, Cap. 216 R.E. 2023, do not restrict a stranger to the original proceedings from filing a revision.

It was contended that the 1st respondent confused the applicable provisions by relying on a non-existent section 41 of Cap. 216 R.E. 2019, and by conflating it with sections 44(1) [formerly section 38(1)] of Cap. 216 R.E. 2023.

Without prejudice to the foregoing, and without conceding that there was a citation error, counsel submitted that even a wrong citation is no longer fatal. Reliance was placed on **Charles Zephania Mwenesano vs Daniel Samwel Chuma**, Civil Reference No. 3 of 2023, TZCA (1 August 2024), where the Court of Appeal of Tanzania (CAT) held that wrong citation or even omission to cite the enabling provision does not render an application incompetent.

In the premises, counsel prayed that both preliminary objections be dismissed with costs for being unmeritorious and for failing to meet the legal threshold of a pure point of law.

In determining the first preliminary objection that the application was filed out of time, the Court has carefully considered the respective positions of the parties. The applicant's defence is that she was not a party to the proceedings relating to the disputed land and was therefore unaware of the suit and the impugned

decision. It is her contention that, in such circumstances, time begins to run from the date when a non-party becomes aware of the impugned proceedings. In support of this position, the applicant explained, at pages 9–10 of her affidavit, the manner in which she became aware of the decision, stating that such awareness arose on 15th October 2024. She further relied on the decision of this Court in **Jacqueline Ntuyabaliwe Mengi & 3 Others** (supra).

On the other hand, the 1st respondent contends that the present application for revision was filed on 8th December 2024, challenging the decision of the DLHT in Land Case No. 38 of 2020, which was delivered on 17th January 2023. The 1st respondent further submits that execution proceedings were lawfully initiated on 24th March 2024, and that the present application is therefore time-barred.

This Court finds guidance in the decision of the CAT in **Victor Rweyemamu Binamungu vs Geoffrey Kabaka & Another**, Civil Application No. 602 of 2020 TZCA 290 (10 June 2020). In that case, as in the present one, the applicant was not a party to the original proceedings and sought to challenge the impugned decision by way of revision. The CAT emphasized that the mere fact that an applicant was not a party to the impugned proceedings does not bar him from seeking revision; on the contrary, it qualifies him to pursue that course, revision



being the only available remedy in the circumstances. The CAT, at page 4, held that:

"First of all, the fact that the applicant did not feature as a party in the proceedings intended to be revised, rather than being a hindrance, does qualify him to make that application because it is settled law that such a person may not impugn the decision otherwise than by revision. See the case of Amani Mashaka (applying as Administrator of the estate of Mwamvita Ahmed deceased) v. Mazoea Amani Mashaka and 2 Others, Civil Application No. 124 of 2015 (unreported). In that case the Court quoted the following passage from its earlier decision in Mgeni Seif v. Mohamed Yahaya Khalfani, Civil Application No. 104 of 2008 (unreported);.....because she was not a party to the said suit, but she is contesting ownership of the house in dispute, not having a right of appeal the only avenue for the applicant would be revision."

Nonetheless, the CAT reiterates that the application of the law of limitation is objective in nature and does not depend on the subjective circumstances of an applicant. Non-parties are equally bound by statutory time limits when seeking to challenge an impugned decision by way of revision. The fact that an applicant was not a party to the original proceedings does not exempt such applicant from compliance with the mandatory timelines prescribed by law. This position of the law was underscored in **Spring Realtors Limited vs Msindika Stores Ltd and Others**, Civil Application No. 129 of 2011 [2017] TZCA 1135 (13 February 2017), where the CAT, at page 8, deliberated as hereunder:

"The underlined expression imposes mandatory requirements to the effect that a party seeking revision must do so within sixty (60) days from the date of the impugned decision. This position is applicable to the applicant in the present application and we do not agree with Mr. Msemwa's proposition that rule 65 (4) of the Rules, is applicable in respect of a person seeking revision and was a party in the courts below. Moreover, where time to apply for revision has expired, one can apply for extension of time under rule 10 of the Rules. The Rule is not restricted to only parties in the courts below as viewed by Mr. Msemwa but it includes the category of the present applicant who is contesting her rights in the impugned decision."

In the circumstances of the present application, this Court finds it necessary to depart from the reasoning adopted in **Jacqueline Ntuyabaliwe Mengi & 3 Others** (supra). While that decision is of persuasive value, it is of coordinate jurisdiction and therefore not binding on this Court. This Court is instead guided by the authoritative pronouncements of the CAT, being a superior court of binding jurisdiction. The CAT has consistently emphasized that where the prescribed statutory period for seeking revision has lapsed, the proper and lawful course is to apply for extension of time under the applicable rules. This position applies equally to parties and non-parties to the original proceedings whose rights are affected by the impugned decision. Being bound by that higher authority, this Court adopts that position.



The legal consequences of non-compliance with limitation periods in applications for revision were authoritatively addressed by the CAT in **Denis T. Mkasa vs Farida Hamza & Another**, Civil Application No. 46 of 2018 [2020] TZCA 303 (18 June 2020), where the CAT at page 11, held that:

"If Rule 65 (4) of the Rules were to be construed in the way the applicant and the second respondent wish us to, then there would be as many limitation periods for filing revision as the number of the applications themselves. There would be no certainty because every applicant would have his own formula for calculating time."

The rationale behind limitation statutes is to prevent endless and belated challenges to judicial decisions. Failure to adhere to prescribed timelines would inevitably lead to an influx of stale applications for revision, thereby clogging the judicial system and defeating the principle of finality.

In the present case, the applicant filed this application on 8th December 2024, seeking revision of a decision delivered on 17th January 2023, resulting in a delay of approximately 705 days. While the right to apply for revision is provided for under section 44(1) of the Land Disputes Courts Act, Cap. 216 R.E. 2023, subsection (2) of that provision does not prescribe a limitation period. In such circumstances, recourse must be had to the Law of Limitation Act, Cap. 89 R.E. 2023. Under the Schedule to that Act, Part III, item 21, applications brought under the Civil Procedure Code, the Magistrates' Courts Act, or any other written law for

which no specific limitation period is provided are required to be filed within sixty (60) days.

It is therefore manifest that the present application was lodged well outside the prescribed statutory period and without any application for extension of time to regularize the delay. The CAT, in **Standard Chartered Bank (Hong Kong) Limited vs VIP Engineering & Marketing Limited and 2 Others**, Civil Application No. 130 of 2013 [2013] TZCA 2454 (18 October 2013), held that:

'We categorically stated that such a failure to apply for a revision within a mandatory prescribed period is a fundamental irregularity. This anomaly, we said, rendered any such an application incompetent, we did not dismiss the application but we struck that application out.'

Applying the foregoing provisions to the present application, this Court finds that the applicant lodged the application well beyond the statutory limitation period of sixty (60) days and without seeking leave for extension of time to regularize the delay. The application is therefore incurably incompetent. Accordingly, the Court holds that the present application is time-barred and incompetent, and it is hereby struck out.

Having determined that the application is time-barred, this Court finds it unnecessary to consider the second preliminary objection. The first preliminary



objection is accordingly upheld, and the application, being incompetent, is hereby struck out. The 1st respondent is awarded the costs.

Ordered accordingly.

Right of appeal is explained.

DATED at **DODOMA** this 29th day of December, 2025.




I.D. MUSOKWA
JUDGE

Ruling delivered in the presence of the applicant and her counsel, Mr. David Deogratus, advocate; and in the presence of the 1st respondent.




I.D. MUSOKWA
JUDGE